

HARAMAYA UNIVERSITY COLLEGE OF LAW
ACADEMIC YEAR 2024/25
LAW MOCK EXAM
TARGET GROUP LAW 5TH YEAR STUDENT

1. Mr. A is a military commander. Mr. B, a man of integrity is a public servant heading procurement department. Mr. B's office floated a bid to procure stationery for the office. One of the bidders happened to be Mr. A's friend. Mr. A called Mr. B and told him to allot the bid to his friend. Mr. B feared what could happen to him and declared Mr. A's friend winner. Based on this fact:
 - A. Mr. B can escape fault based extra-contractual liability invoking superior order.
 - B. Mr. B cannot escape liability because there is no hierarchical relationship between Mr. A and B.
 - C. Mr. A will be subjected to fault-based liability and cannot get any mitigation on quantum of compensation.
 - D. A and B are answers
 - E. B and C are answers
2. Which one of the following statements is correct about formation of contracts under the Ethiopian law of contracts?
 - A. Contracts can be formed without the expression of consent of the contracting parties as long as there is a meeting of mind of the contracting parties
 - B. Contract cannot be formed unless the contracting parties meet physically and sign the contract in person
 - C. A contract can be formed even between absent parties as long as there are appropriate offer and acceptance between the contracting parties
 - D. Any valid contract is said to be formed where the form requirement is completely satisfied by the contracting parties
3. Contract shall be interpreted when,
 - A. When benefit accrued to one of the contracting parties outweigh the other party benefit

- B. When the court due to justice and equity found that there is imbalance of benefit among the contracting party
 - C. It became difficult to ascertain the intention of the parties.
 - D. A& C
4. Whenever performance of the contract is concerned with Money debt the law guaranteed all the freedoms for the parties, except one.
- A. The contracting party may agree to furnish payment in foreign exchange.
 - B. Parties may by mutual agreement fix greatest interest rate without any legal limitation.
 - C. The creditor shall always claim interest regardless of establishing incurred damage.
 - D. It's the debtor who can determine appropriation of payment made in lieu of money debts.
5. Which one of the following statements is incorrect regarding suretyship?
- A. The source of suretyship is always contractual agreement of the parties. Whereas the main obligation against which the surety provided may arise from extracontractual liabilities.
 - B. Suretyship is presumed to be made gratuitously except clearly stipulated otherwise by the parties.
 - C. A joint surety has a right to invoke the benefit of discussion and benefit of division when he is proceeded against by the creditor.
 - D. The creditor does not have any recourse against the counter-surety even in a circumstance whereby the principal surety failed to cover debtors' debt.
6. Which one of the following is correct?
- A. The giving of earnest shall be proof of the performance of the contract.
 - B. Where penalty for non-performance is provided in the contract, in case of non-performance of the contract, penalty and interest of the penalty can be claimed.
 - C. In case of conditional contracts, period of limitation starts to run from the rights under the contract could be exercised.
 - D. None

7. Under Ethiopian contract law, when do general terms of business proposed by one party become binding on the other party?
 - A. When the terms are written in a formal document.
 - B. When the other party knew and accepted them, or they were prescribed or approved by the authorities.
 - C. When the terms are verbally communicated during negotiations.
 - D. When the terms are standard industry practice.
8. Under Ethiopian contract law, in which of the following situations is a party **not** liable for damages due to non-performance of a contract?
 - A. When the debtor has committed a grave fault in a contract made for the exclusive advantage of the other party.
 - B. When the debtor fails to inform the other party of the reason preventing performance, causing avoidable harm.
 - C. When the debtor has only undertaken to do their best but did not guarantee success, and the non-performance was not due to their fault.
 - D. When the debtor intentionally delays performance but eventually fulfills the obligation.
9. According to the Ethiopian civil code provisions on conditional contracts, which of the following is **true**?
 - A. A party may treat a condition as fulfilled if the other party intentionally prevents its fulfillment in bad faith.
 - B. A condition subsequent makes the contract effective only after the uncertain event occurs.
 - C. A party is allowed to interfere with the fulfillment of the condition if it benefits their position.
 - D. Acts of management performed before the condition is fulfilled are always invalid, regardless of good faith.
10. If compensation is associated with non-performance of a contract, invalidation is associated with

- A. Termination of a contract
 - B. Defect in the formation of a contract
 - C. Privity of contract
 - D. Non-retroactivity of contract
11. Which one of the following cannot be embraced by the expression “vice of consent” under the Ethiopian law of contracts?
- A. Mistake
 - B. Duress
 - C. Fraud
 - D. Immorality of object of contract
12. one of the following statements is not true about the nature of marriage?
- A. All types of marriage shall satisfy the same validity requirements
 - B. All type of marriage shall be registered before competent officer of civil status
 - C. All type of marriage produces similar legal consequence
 - D. All type of marriage follows the same celebration formality
13. According to the revised family code marriage shall produce effect from
- A. time of registration of marriage
 - B. time of celebration of marriage
 - C. time of betrothal of marriage
 - D. time of issuance of certificate of marriage
14. In the absence of contract of marriage or where contract of marriage invalid under the law, one of the following is a common property
- A. the property which the spouse posses on the day of their marriage
 - B. the property which a spouse acquires by succession after marriage
 - C. all property acquired by during marriage by onerous title
 - D. property which a spouse acquirer by donation after their marriage
15. As a matter of rule, one of the statements is true about administration of personal property
- A. The spouses shall jointly administer their respective personal property
 - B. Each of the spouse shall freely dispose his/her personal property
 - C. Each of the spouse shall freely dispose the personal property of the other spouse
 - D. Each of the spouse shall freely administer the personal property of the other spouse

16. A spouse can do one of the following transactions without the agreement of the other spouse
- A. Renting out a commonly owned house
 - B. exchanging a commonly owned chair which has a value of birr 700
 - C. Giving a birth day gift which has value birr 400
 - D. Borrowing birr 400 from another person
17. A husband may not be presumed to be the father of the child
- A. If the child is born more than 180 days after the conclusion of the marriage
 - B. If the child is born within 300 after the dissolution of marriage
 - C. If the child is born 300 days after the court declared the absence of the husband
 - D. If the child is born within 180 days after the conclusion of marriage
18. One of the following is not the obligation to supply maintenance.
- A. An obligation to supply maintenance exists between ascendants and descendants
 - B. An obligation to supply maintenance exists between person related by affinity in direct line
 - C. An obligation to supply maintenance does not exist between brothers and sisters
 - D. An obligation to supply maintenance subsists between a man and a great grand parent.
19. Who will be the guardian or tutor of a child who used to live with his mother that has passed away?
- A. the father of the child
 - B. the ascendants of the child
 - C. the brothers or sisters of the child
 - D. aunt or uncle of the child
20. Among the following alternatives which one is characteristic patrimony?
- A. A patrimony vested on privilege persons
 - B. Patrimony is attached to its holder
 - C. Only capable persons have a patrimony
 - D. A person can have more than one patrimony
21. Sarah was convicted of forging her grandfather's will shortly before his death, altering it to name herself as the sole heir. After her grandfather passed away, the forgery was

discovered. The original will (which she destroyed) had divided the estate equally among all grandchildren. The other grandchildren now challenge Sarah's right to inherit.

Question: Based on the provisions on unworthiness to succeed, is Sarah disqualified from inheriting under her grandfather's estate?

- A. **No**, because she did not cause her grandfather's death or attempt to kill him.
- B. **Yes**, because she intentionally destroyed the original will and used a forged one.
- C. **No**, but only if the forgery occurred more than three months before the grandfather's death.
- D. **Yes**, but only if she was also convicted of a violent crime against her grandfather.

22. In his will, Mr. Tola explicitly disinherited his only son, Roba, stating: *"I disinherit Roba because he abandoned me in my old age and refused to provide any care or support."* Mr. Tola did not name any other universal legatee. After his death, Roba challenges the disinheritance, claiming the reason given is false.

Question: Based on the Ethiopian civil code provisions on disinheritance, what is the **most likely legal outcome**?

- A. The disinheritance is invalid because Mr. Johnson failed to appoint a universal legatee.
- B. The disinheritance is valid if the court finds the stated reason (abandonment) would justify disinheritance, regardless of its factual accuracy.
- C. The disinheritance is invalid because descendants cannot be disinherited without their consent.
- D. The disinheritance is valid only if David is also convicted of a crime against Mr. Johnson.

23. Which right allows an individual to occupy and possess a property without owning it?

- A. Possession right
- B. Ownership right
- C. Usufruct right
- D. Servitude right

24. It is a situation which requires the legatee to wait until a certain time lapse or a circumstance occurs.
- A. Resolutive condition
 - B. Suspensive condition
 - C. Substitutio vulgaris
 - D. Charges
25. Which one of the following statements is true about acceptance of succession by heirs?
- A. It can be revoked.
 - B. Conditional acceptance is allowed under the law.
 - C. An heir may accept a succession through his/her agent.
 - D. An heir may tacitly accept the succession
26. What is the procedural effect for **nonappearance of the plaintiff at first hearing** in civil suit?
- A. The defendant is deemed to have admitted the suit against him.
 - B. The court shall order a second summons to be served on the defendant.
 - C. The court may dismiss the suit.
 - D. The court shall proceed *ex-parte*
27. Which one of the following is **not true** about a summary procedure under Ethiopian Civil Procedure Code?
- A. The proceeding is ex-parte, and the defendant is not served with notice.
 - B. It's available to recover liquidated amount of civil claim.
 - C. A plaintiff has to state that in his belief there is no defense to the suit.
 - D. The plaintiff has the option to employ it, but he/she is not obliged to do so.
28. Which one of the following statement is **not correct** about review of judgment at appellate court?
- A. Appeal cannot be made on the mere ground of newly discovered evidences.
 - B. Parties cannot raise new issues and new objections to the action of the subordinate court.
 - C. Parties are not allowed to make new legal arguments.
 - D. The appellate court is given broad powers with respect to its disposition of case.

29. Identify the **incorrect** statement regarding the principle of resjudicata and splitting of claim in civil suit.

- A. The matter have been litigated includes a suit which an exparte or default decree rendered
- B. A suit which the party has been withdrawn without leave may constitute resjudicata.
- C. A former decision in criminal proceeding may constitute resjudicata effect for subsequent civil suit.
- D. The rule against splitting of claims is not applicable to proceedings in execution.

30. Under the civil proceeding of Ethiopia, judges:

- A. Cannot call any witness who is not listed as a witness of either the plaintiff or the defendant.
- B. Are passive actors both at the pre-trial and during trial stages
- C. Can put any question to the witnesses of parties at any stage of examination of such witnesses when they find it necessary for the just decision of cases at their hand.
- D. Cannot call any witness before the witnesses of the plaintiff and the defendant are heard.

31. Which one of the following statements is **not true** about courts jurisdiction system in FDRE?

- A. Federal court establishment laws specify cases which fall within the exclusive jurisdiction of federal courts.
- B. Regional states court establishment laws specify cases which fall within the exclusive jurisdiction of state courts.
- C. Material jurisdiction is mainly concerned with the level of courts, and the type of court that should hear the case.
- D. The monetary value of a civil claim on the date of institution of a suit is relevant to determine whether the claim falls under federal or state court jurisdiction.

32. Which one the following ground of objection in criminal proceeding **does not preclude** the court from considering the merit of the case?

- A. When the accused request for a separate trial.
- B. Identical case involving the same set of facts is pending before another court.
- C. The charge is barred by limitation or is the subject of pardon or amnesty.
- D. That the accused is not responsible for his acts.

33. Which one of the following is **not true** in case the court demands the defendant to present his defense?

- A. The court of its own motion may still require additional evidence.
- B. The defendant, failing to cast reasonable doubt on the prosecution case would be convicted.
- C. The defendant failing to refute the prosecution evidence altogether would be convicted.
- D. None

34. A suspect not be punished or held in contempt of court for failing to answer question or provide evidence to public prosecutor. This kind of protection represents:

- A. The principle against double jeopardy.
- B. The principle against self-incrimination.
- C. The principle of legality.
- D. The principle of equality.

35. In general, due process in criminal procedures requires the following, **Except one**:

- A. Notice of the proceedings.
- B. Opportunity to present a defense.
- C. An impartial tribunal and an atmosphere of fairness.
- D. None

36. Which one of the following is true about preliminary objection as incorporated under the 1965 civil procedure code of Ethiopia?

- A. Sustaining preliminary objection by the court results either in dismissing or strike out of the suit.
- B. All preliminary objections can't be raised at the latter stage of the litigation.
- C. It is a right for the plaintiff.

D. Preliminary objection on the grounds of material jurisdiction has no difference with that raised on grounds of local jurisdiction.

37. Which one of the following is correct about right to appeal under the Ethiopian legal system?

A. An appeal is constitutional, procedural as well as substantive right in Ethiopia.

B. The Ethiopian civil procedure code has no single room for appeal against interlocutory orders.

C. The same period of limitation is recognized to lodge an appeal in Ethiopia.

D. The concept of second appeal is not totally recognized under the Ethiopian Federal courts proclamation No.1234/2013.

38. Assuming that police officer H obtains search warrant to search the premise of Ms X in want of some material evidence related to a crime of forgery. One is necessarily true:

A. H may only search the premises described in the warrant and may only search for the items listed in the warrant

B. H may not search X`s premise before securing X`s consent.

C. H may search the premise only in day time.

D. Court may not order search to be conducted at night

39. Except one of the following, Court shall not interpret in favour of debtor, in case there is a doubt as to the meaning of a contractual stipulation.

A. Contract of adhesion

B. Gratuitous contract

C. Contract with Public Administration

D. None

40. Which one of the following is **FALSE** about private prosecution under Ethiopia Criminal Procedural Law?

A. Private Prosecution can be instituted for crimes not punishable up on complaint.

B. Private Prosecution may institute proceeding against an accused after authorizing by Prosecutor because of insufficiency of evidence that proof accusation.

C. Private prosecution shall conduct the proceeding at his peril and at his own expense.

D. Private prosecution can withdraw his proceeding at any time before judgment.

41. Which one of the following is **FALSE** about an accusation and complaint?

- A. As a rule communication of information to the police about the commission of the crimes is a duty.
- B. As a rule communication of information to the police about the commission of the crimes is a right.
- C. In order to police conducting an investigation concerning offences punishable up on compliant prior consent of the injured party is required.
- D. Accusation is information communicated to the police concerning an offence which is a predominantly public nature.

42. One of the following fact describes the “Capable of being complied with” element of fidelity of law theorized by Fuller

- A. The FDRE government has issued a law that bans marriage and sexual affairs among men and women until 2027
- B. The Federal Negaret Gazette, over which national laws are, published uses only English and Amharic as a medium of communication while the country hosts more than 85 of illiterate and countryside residents
- C. The ruling party enacted a law that solely serves their interests during their stay in power and proposed a reform bill that equalizes all parties when they realize that they are beaten in election
- D. The Oromia regional state enacted a proclamation that can be understood only by professionals from law back ground.

43. Which one of following correctly represents the concept of “**the bad man**” in legal realism theory?

- A. The Law makers or legislatures
- B. The Judges sitting over the case
- C. The litigant predicts what court will do/decide
- D. The person convicted for his criminality

44. The most separating idea among positivism legal theory and natural legal theory is the idea of “**‘is’ and ‘ought to’**” arguments and what respectively describes them properly?

- A. Nature and judgment
- B. Reality and value
- C. Scientific description of things and normativity
- D. All

45. One of the following **incorrectly** describes the critical legal studies?
- A. Criticizing legal studies (jurisprudence) for conferring legitimacy for liberal legal theory
 - B. Providing alternative solution for existing failed legal system
 - C. Attacking liberal studies for justifying exploitation of capitalism political ideology
 - D. It is a continuation or successor of critics of legal realism theory
46. One of the following is **true** point of difference about historical and sociological in their attempt to define “law” respectively?
- A. Discovery and invention of law
 - B. God gift and human made law
 - C. past society and current society over law
 - D. similarity and difference of law across time, place and society
47. Which one of the following is the **incorrect** way of describing postmodernism philosophy and postmodernism legal theory?
- A. Labelling “laws” as an assertion rather than objective
 - B. Death of common truth or value
 - C. Embraces human evolutions process and outcomes
 - D. Re-litigating foundational structure and mainstream ideas of current society
48. Talking about constitution and constitutionalism, which of the following statement is invalid?
- A. Constitutions, written or unwritten, are condition precedents for constitutionalism.
 - B. It is hardly possible to establish a constitutional legal and political order with a constitution that doesn’t put limits on the government.
 - C. The UK’s experience demonstrates the possibility of establishing constitutionalism in the absence of constitution.
 - D. A and B
49. Identify the statement with an incorrect account of regional states’ power to decree a state of emergency according to the FDRE Constitution.

- A. The ground under which states may declare a state of emergency is limited to the occurrence of a natural disaster or an epidemic.
 - B. A state of emergency declared by one state may not apply to another state's territory.
 - C. The State Administration decrees such state of emergency at state level.
 - D. Regional states may, by their respective constitutions, provide for additional grounds for a state of emergency declaration than those specified under the FDRE Constitution.
50. The Doctrine of Check and balances in Constitutional Law suggests all of the following except:
- A. Check and balance ensures balance between powers of government organs and prevents arbitrary use of power there by protecting liberty
 - B. The doctrine holds that no organ of the state should be given unchecked power in its sphere
 - C. The power of one organ of government should be restrained by the control exercised by the other power
 - D. One person may be a member of more than one organ of government to ensure check and balance.
51. Regarding limitation to constitutional rights under the FDRE Which one of the following is a correct statement?
- A. The FDRE Constitution follows the model of providing for general limitations clause to rights without specific details
 - B. Under FDRE there are no rights with limitations and all rights are absolute
 - C. The FDRE Constitution follows internal and individualized limitations to constitutional rights
 - D. The FDRE Constitution follows the model of combined approach to limitations
52. One of the following cannot be considered a justifiable reason to trigger Constitutional amendment process in democratic states:
- A. Inadequacy of some Constitutional provisions tested in practice
 - B. The need to extend the term of office of a President or a prime Minister beyond two terms

C. Existence of fundamental change in the power balance between political actors in the state

D. The need to accommodate the demands of the minority group who become vocal overtime.

53. Montesquieu's Spirit of the Laws emphasizes separation of powers to:

A. Centralize authority in the executive

B. Prevent tyranny through checks and balances

C. Ensure judicial supremacy over legislation

D. Promote parliamentary sovereignty

54. Which one of the mechanism is not used to solve constitutional problems within FDRE Constitution?

A. Constitutional Interpretation

B. Constitutional Amendment

C. Constitutional mainstreaming

D. All

55. Which one of the following is true about Charter Based human rights supervisory mechanism?

A. Supervisory mechanisms based on legally binding human rights treaty obligations.

B. Supervisory mechanisms enshrined in legally binding human rights instruments or conventions.

C. Supervisory mechanisms not based on legally binding human rights treaty obligations.

D. Reporting procedures, Interstate complaint, Individual complaint, Inquiries and others are the procedures to be followed.

56. In which form of business organization that the member(s) is/are legally authorized to raise defense of benefit of discussion where the creditor(s) brought action against such member(s) for the debt or liability of the former?

A. Share Company.

B. Private Limited Company.

C. Limited Partnership.

D. General Partnership.

57. What distinguishes possession right from ownership right?

- A. Possession right is temporary, while ownership right is permanent.
- B. Possession right can be transferred, while ownership right cannot.
- C. Possession right includes the right to use and enjoy the property, while ownership right includes the right to control and dispose of the property.
- D. Possession right is recognized in common law jurisdictions, while ownership right is recognized in civil law jurisdictions.

58. What is a common characteristic of both servitudes right and usufruct right?

- A. They are temporary rights that expire after a certain period.
- B. They both involve the transfer of ownership of the property.
- C. They are rights that can only be held by individuals and not by legal entities.
- D. They grant the holder the right to use and enjoy another person's property.

59. In property law, what does the right of preemption refer to?

- A. The right of the government to seize private property for public use.
- B. The right of a tenant to purchase the property they are currently renting.
- C. The right of a co-owner to purchase the share of another co-owner who wishes to sell.
- D. The right of a mortgage lender to foreclose on a property in case of default.

60. Among the following choices one is not a precondition to be complied by existing companies before increasing their capital?

- A. Amendment of memorandum of association needs to be made.
- B. The preexisting shares must be fully paid.
- C. Dividend shall be distributed to shareholders.
- D. The price of the new shares needs to be fixed.

61. Which one of the followings is an exception to the principle of *privity* of contracts?

- A. Delegation.
- B. Obligation.
- C. *Pacta Sunt Servanda*.
- D. Suretyship.

62. Which one of the followings is true about the ***doctrine of constructive notice*** of memorandum and articles of association of share companies?

- A. It is a positive document.

- B. It is a negative document.
 - C. It is an exception to doctrine of indoor management.
 - D. It helps corporate outsiders to know the internal activities of the company.
63. Which one of the followings is true according to the ***doctrine of corporate veil***?
- A. It is an exception to the principle of corporate limited liability.
 - B. It is the doctrine that makes corporate outsider's liability unlimited.
 - C. It is an exception to the principle of separation of ownership and management.
 - D. It is the doctrine that makes all corporate insiders' liability unlimited.
64. Of the following one is the process comprises all the operations required to facilitate the end of company under Ethiopian Commercial Code.
- A. Liquidation
 - B. Dissolution
 - C. Winding up
 - D. B & C
65. Identify the incorrect assertion concerning use of force
- A. Customary international law permits anticipatory self-defence.
 - B. The ICJ jurisprudence maintains a state centric interpretation in its understanding of 'armed attack' as stipulated under article 51 of the UN Charter.
 - C. The only exception to the general ban against use of force recognized under the UN system is self-defence.
 - D. None
66. In 2025, amid the ongoing conflict between Russia and Ukraine, the Russian military lays siege to the fictional city of **Novohrad**, a strategically important Ukrainian stronghold. After weeks of bombardment, Russian forces cut off food, water, and medical supplies to the civilian population, leading to severe humanitarian suffering. Ukrainian forces, unable to break the siege, accuse Russia of violating international humanitarian law (IHL) and human rights law (HRL). Meanwhile, Russia claims that Novohrad is a legitimate military target due to the presence of Ukrainian armed forces and that the siege is a lawful method

of warfare. The UN Security Council fails to pass a resolution due to a Russian veto, but the International Criminal Court (ICC) opens an investigation into alleged war crimes.

Question: If the ICC investigates Russian commanders for war crimes, which of the following could they be charged with under the Rome Statute?

- A. Crime of aggression.
- B. Willful killing of civilians
- C. Violating the UN Charter's prohibition on the use of force
- D. Breach of diplomatic immunity

67. Based on the hypothetical case narrated on question number. 66, If Ukraine brings a case before the International Court of Justice (ICJ) alleging Russia's siege violates human rights law, what would be the most likely legal basis?

- A. Violation of the European Convention on Human Rights (ECHR)
- B. Violation of the Genocide Convention.
- C. Violation of the International Covenant on Civil and Political Rights (ICCPR).
- D. Violation of the Vienna Convention on Diplomatic Relations

68. One of the following is incorrect concerning the law of treaty

- A. A party may invoke its internal law to justify its failure of performing obligations arising from a treaty.
- B. A treaty does not create either obligations or rights for a third state without its consent.
- C. A treaty shall be interpreted in good faith in accordance with their ordinary meanings in their context taking its object and purpose into consideration.
- D. None

69. Which one of the following statements is not correct?

- A. Classic rights are often seen not to require the non-intervention of the state
- B. Social rights' require active intervention on the part of the state
- C. Human rights can be divided into generations
- D. Classification of human rights into generations is incoherent

70. Choose the correct statement from the following

- A. Convention on the Elimination of Discrimination against Women is the most ratified international human rights instrument.
- B. There are currently ten human rights committee bodies that monitor international human rights.
- C. Individuals are entitled to communicate to treaty bodies against violation of their rights without limitation.
- D. There are two optional protocols to the Convention on the Rights of the Child (CRC)

71. How does Ethiopian criminal law differ from civil law?

- A. Criminal law deals with disputes between individuals, while civil law deals with offenses against the state.
- B. Criminal law focuses on punishment, while civil law focuses on compensation for damages.
- C. There is no distinction between criminal law and civil law in Ethiopia
- D. Civil law is based on religious principles, while criminal law is based on secular principle

72. What principle forms the basis of Ethiopian criminal law?

- A. Restorative justice
- B. Retributive justice
- C. Utilitarianism
- D. Rehabilitation

73. Which of the following assessment can be made when a taxpayer is taking steps to conceal property in order to avoid paying taxes?

- A. Estimated Assessment.
- B. Jeopardy Assessment
- C. Amended Assessment
- D. Self-Assessment

74. Which of the following is an example of a white-collar crime in Ethiopia?

- A. Kidnapping
- B. Robbery
- C. Drug trafficking

D. Fraud

75. What is the legal concept of double jeopardy in Ethiopian criminal law?

- A. A person cannot be charged with the same offense twice
- B. A person can be charged with multiple offenses arising from a single act.
- C. A person cannot be charged with a crime if they have already been convicted in civil court
- D. A person can be charged with a crime even after being acquitted in a previous trial.

76. What is the legal principle of "presumption of innocence" in Ethiopian criminal law?

- A. The burden of proof rests on the accused
- B. The accused is considered guilty until proven innocent.
- C. The accused is protected from self-incrimination
- D. The accused is presumed innocent until proven guilty beyond a reasonable doubt

77. All of the following characterize progressive Taxation **except**,

- A. It is based on the ability to pay principle.
- B. It promotes equality of incomes and wealth.
- C. It is productive, economical and inelastic.
- D. It reduces capital formation.

78. How does VAT differ from a sales tax?

- A. VAT is levied at a higher rate than sales tax
- B. VAT is paid by businesses, while sales tax is paid by consumers
- C. VAT is calculated based on the value added at each stage of production, while sales tax is calculated based on the final sale price
- D. VAT is only applicable to certain goods and services, while sales tax applies to all goods and services

79. Which of the following best describes the principle of **equity** in taxation?

- A. Taxes should be collected in a way that minimizes administrative costs.

- B. Every individual should pay the same amount of tax regardless of income.
- C. Taxpayers should contribute according to their ability to pay.
- D. Taxes should be used solely for public infrastructure development.

80. Under which of the following circumstances would a subordinate **not** be at fault for carrying out an illegal order under Ethiopian extracontractual liability?

- A. The subordinate was unaware of the criminal nature of the order but executed it negligently.
- B. The subordinate knew the order was illegal but obeyed due to fear of imminent dismissal, making it practically impossible to disobey.
- C. The subordinate followed an order from a superior in rank but not in authority.
- D. The subordinate exceeded the order by causing additional harm during execution.

81. Which of the following actions would constitute **unfair competition** under Ethiopian Extra contractual liability?

- A. A company lowers its prices to match a competitor's sale, even if it means minimal profit.
- B. A business improves its product quality to attract more customers than its rivals.
- C. A firm spreads false rumors about a competitor's financial instability to damage their reputation.
- D. A retailer offers faster delivery services than its competitors by optimizing logistics.

82. Which one of the following is true regarding oral evidence?

- A. oral evidences are always direct evidence
- B. oral evidences are important in ensuring correctness of decision making
- C. only relevant when there is no another type evidence like documentary evidence
- D. oral evidences do not need corroborative evidences at all.

83. In a limited partnership, who bears unlimited liability?

- A. All partners equally
- B. Only limited partners
- C. Only general partners

D. None of the above

84. Of the following one is NOT reasonable ground of dissolution for limited partnership;

- A. Absence of limited partner
- B. Absence of general partner
- C. Bankruptcy of the partnership
- D. Expire of time fixed for the business

85. Assuming that Mohammed is an employee of Nib Bank and he is earning 5,000-birr monthly salary. He pays 938-birr income tax to the government every month. Which of the following statement is correct?

- A. He has an obligation not to do which emanates from law.
- B. He has an obligation to do which emanates from law.
- C. He has an obligation to do which emanates from contract.
- D. He has an obligation to do which emanates from law as well as from contract

86. Scenario: Jabir, a car dealer, has been negotiating with Sofi, a potential buyer, for the sale of a luxury car. During the negotiations, Jabir expresses his intention to sell the car to Sofi and encourages her to make arrangements for financing and insurance. Based on Jabir's assurances, Sofi incurs expenses for a loan application and pays for an insurance policy specifically tailored to the car. However, just before the contract is finalized, Jabir arbitrarily changes his mind and informs Sofi that he will no longer sell the car to her.

Question: In the scenario described, does Jabir committed an offense under extra contractual liability?

- A. No, because Jabir is not legally obliged to sell the car to Sofi.
- B. No, because changing one's mind during negotiations is a common occurrence in business transactions.
- C. Yes, because Jabir declared his intention to enter into a contract and induced Sofi to incur expenses, but then arbitrarily abandoned his intention.

- D. Yes, because Sofi should have obtained a written contract from Jabir before incurring any expenses.

87. Scenario: Sura is the owner of a residential property, and he grants Susan a usufruct over the property. The property is subject to a mortgage that Sura has taken to secure a loan. Susan, as the usufructuary, has been enjoying the benefits of the property when she receives a notice from the bank stating that the mortgage payments are in default.

Question: what are Susan's rights and liabilities regarding the mortgage on the property?

- A. Susan, as the usufructuary, is personally liable for the debts under the mortgage.
- B. Susan is not liable for the debts under the mortgage, and she can request reimbursement from Sura if she pays them.
- C. Susan has the right to claim the property from the bank, and she can bring legal actions related to the possession of the property.
- D. Susan is responsible for paying a portion of the mortgage, proportionate to the value of the usufruct she enjoys.

88. Which one of the following statements is incorrect concerning the scope of application of the general provisions of contract law on special contracts and other obligations?

- A. The general legal principles on the formation, effects and extinction of contract apply to code on special contracts.
- B. Theory of complementarity governs the scope of application of the general provisions of contract law on special contracts and other obligations.
- C. The scope of application of the general provisions of contract law to special contracts applies to the extent that the matter to be regulated is not covered by specific legal provisions to be found in the province of the special law of which it forms a part.
- D. General provisions of general contract law apply to extracontractual liability law unconditionally.

89. In which one of the following situations is the waging of war tolerated under international law?

- A. Collective Self-Defense.
- B. Anticipatory Self-defense.

- C. Humanitarian intervention.
- D. Defense of one's nationals.

90. Government forcibly relocates indigenous communities from their ancestral lands to make way for large-scale industrial projects, without adequate consultation or consent. Which legal principle, enshrined in international human rights law and specifically relevant to indigenous rights, would be most applicable in contesting the forced relocation of indigenous communities?

- A. The principle of self-determination
- B. The principle of non-refoulement
- C. The principle of permanent sovereignty over natural resources
- D. The principle of free, prior, and informed consent

91. Which one of the following is true about the evolution of international law?

- A. The treaty of Westphalia gave rise to the evolution of international law
- B. The fall of the Roman Catholic Church is one factor among the factors that contributed to its evolution.
- C. It is difficult to trace the exact time of its initiation.
- D. All

92. Ethiopia, a landlocked country and currently seeks access to maritime resources and ports for its import and export activities. However, negotiations with neighboring coastal states for access to maritime territories have been unsuccessful due to competing territorial claims. What legal principle could Ethiopia rely on to assert its rights to maritime resources? Which legal principle, recognized under the United Nations Convention on the Law of the Sea (UNCLOS), could Ethiopia invoke to assert its rights to maritime resources despite being landlocked?

- A. The principle of innocent passage
- B. The principle of exclusive economic zone (EEZ)
- C. The principle of territorial integrity
- D. The principle of archipelagic states

93. Ethiopia and Somaliland sign a Memorandum of Agreement (MOA) outlining areas of cooperation in trade, security, and infrastructure development. What legal status does the MOA

hold under international law? What is the legal status of the Memorandum of Agreement (MOA) signed between Ethiopia and Somaliland under international law?

- A. Legally binding treaty
- B. Non-binding agreement
- C. Executive agreement
- D. Multilateral convention

94. Which of the following is true about relevant facts and collateral facts?

- A. Collateral facts are those facts having direct connection with the outcome of the case, while relevant facts are subordinate fact.
- B. Relevant facts are facts having relationship with the fact in issue, while collateral facts are facts playing great role to decide over minor disputing fact.
- C. Collateral fact helps to know disputed fact, while relevant fact has nothing to do with disputed fact.
- D. A & B

95. One of the following is not mechanism of identifying the reliability of oral evidence.

- A. Hearsay evidence for criminal case
- B. Degree of emphasis
- C. Cross-examination
- D. Degree of proof

96. Scenario: Kulani, a person with no prior criminal record, was provoked by her neighbour, Taitu, who insulted her and made false accusations against him. In a fit of anger, Kulani physically assaulted Taitu, causing her harm. Question: Based on the provisions of general extenuating circumstances under FDRE Criminal code, which factor could potentially lead to a reduction in Kulani's penalty?

- A. Kalani's lack of intelligence or simplicity of mind.
- B. Kalani's sincere repentance and admission of the crime.
- C. Kalani's state of great material or moral distress.
- D. Kalani's honorable and disinterested motive.

97. A suit wherein a person in possession of property or owing money which is or may be claimed adversely by two or more persons, to one or other of whom alone he can' be liable, seeks to be relieved from liability to the claimants, or either of them, with regard to the disposition of such property or money is known as?

- A. Suit of pleader
- B. Suit of interpleader
- C. Suit of class action
- D. Suit of possessory action

98. According to the Theory of Moral Obligation, what is the primary basis for an attorney's duty to act ethically and in the best interests of their clients?

- A. Personal beliefs and values of the attorney
- B. Professional reputation and career advancement
- C. Legal rules and regulations imposed by the governing body
- D. Moral principles and obligations inherent in the attorney-client relationship

99. Under the Ethiopian Labour Proclamation No. 1156/2019, what is the maximum probation period an employer can set for a new employee?

- A. 1 month. B. 3 months. C. 6 months D. 12 months

100. What is public international law referring?

- A. Public international law is the law that applies to *international actions*, only committed by States.
- B. Public international law is the law that applies to *international actions*, whether committed by States, international organizations, or even individuals.
- C. There is international government that has authority to pass such laws.
- D. Public international law involves a super-legal system that operates between States and it is parts of domestic laws.